

5 Service Levels

The purpose of this SLA is to ensure that the proper elements and commitments are in place to provide consistent IT service support and delivery to EST by the Service Provider.

A RACI table outlining the responsibilities, accountabilities, approval and communication requirements between EST, Solstice and EST should be finalised as part of the mobilisation with consultation from all parties. Once this has been finalised, the table will be incorporated into this agreement as a variation.

5.1 Hours of Service

Support type	Days	Hours	Support method
Working Days	Working Days	09:00 – 17:30	Dedicated incident logging system Dedicated e -mail account Dedicated phone number
Extended business days	Working Days	06:00 – 20:00	Dedicated incident logging system Dedicated e -mail account Dedicated phone number
On demand	Any day and time	00:00 – 24:00	As agreed in advance

Planned maintenance shall be restricted to non-core hours only.

5.2 Priority

The following table contains the definitions of incident severity levels which will be used by Energy Saving Trust to classify incidents:

Incident severity level	Description
Severity 1	the Incident (a) renders a business critical system, service, software, equipment or network component un-available, substantially un-available or seriously impacts normal business operations, in each case prohibiting the execution of productive work, and (b) affects either (i) a group or groups of people, or (ii) a single individual performing a critical business function.

Severity 2	the incident (a) does not render a business critical system, service, software, equipment or network component un-available or substantially un-available, but a function or functions are not available, substantially available or functioning as they should, in each case prohibiting the execution of productive work, and (b) affects either (i) a group or groups of people, or (ii) a single individual performing a critical business function.
Severity 3	the Incident causes a group or individual to experience an incident with accessing or using a system, service, software, equipment or network component or a key feature thereof and a reasonable workaround is not available, but does not prohibit the execution of productive work.
Severity 4	the Incident may require an extended resolution time, but does not prohibit the execution of productive work and a reasonable workaround is available.

5.3 SLA

- The Contract will deliver the Services in line with the SLAs outlined at this Clause 5.
- SLAs shall be monitored and calculated on a monthly basis.
- The following table describes the incident resolution targets and the associated SLA targets: (such incidents exclude database performance, network, infrastructure issues)

Service Component	Severity Level	Response Time	Resolution Time	SLA Target
Incident management	Severity 1	15 minutes	4 Hours	95%
	Severity 2	1 working hour	1 Working Day	90%
	Severity 3	2 working hours	2 Working Days	90%
	Severity 4	4 working hours	5 Working Days	85%

- The SLA target for each of the Service Levels detailed in this Section and 5.5 below shall be calculated in accordance with the following formula:

$$\frac{(\text{Total Incidents} - \text{Total Incidents outside SLA Target})}{\text{Total Incidents}} = \text{Actual SLA Performance \%}$$

- The Incident Resolution Timescale shall be measured from the point where the Contractor accepts the Incident or Service Request from the Operator service desk, to the point where either;
- The user has accepted that it has been resolved or completed in accordance with the relevant criteria specified in this Agreement.

- The Incident has been forwarded to a 3rd party for resolution which may include emergency release and deployment.
- Where the user agrees that the fix for the incident can be delivered in a bundled release later
- Should any of the exceptions outlined at 5.4 below occur, the SLA Target(s) relating to the affected Service(s) will be suspended and will be provided on a reasonable endeavours basis and the Contractor shall be exempt from financial liability.

5.4 Exceptions

- The Energy Saving Trust fails to meet any of their obligations or responsibilities set out in this Contract
- The Energy Saving Trust wilfully provides the Contractor with incorrect information relating to the Services.
- Downtime caused as a result of the Energy Saving Trust exceeding system capacity;
- Downtime due to problems caused by Energy Saving Trust-supplied web site content or software (e.g., faulty third party applications);
- Downtime due to the acts or omissions of the Energy Saving Trust, its employees, agents, third party contractors or vendors, or anyone gaining access to the Location(s) or to the Customer's web site at the request of Customer;
- Downtime caused by Force Majeure.
- Any failure of any component for which the Contractor is not responsible, including but not limited to all Energy Saving Trust-provided or Energy Saving Trust-managed electrical power sources, networking equipment, computer hardware, computer software or web site content;
- Any other exception as reasonably suggested by the Contract and agreed by the Energy Saving Trust during the term of this Contract.

5.5 Systems Availability

The anticipated availability of the EPC register is 99.9% uptime. Once the Contractor has taken on the hosting responsibilities of the Live environment this SLA will be monitored and reported upon and be subject to Service credits as detailed in 5.6 below.

5.6 Service credits

If the Contractor fails to provide a Solution within the relevant Service Level response time, the Client shall become entitled to the Service Credit specified in the table set out below corresponding to the relevant severity level of Fault on submitting a written claim for such Service Credit, provided that the relevant Fault or other problem relating to the Software:

- did not result from a Customer Cause or a cause outside the Contractors control; and
- was promptly notified to the Client

Severity Level of Fault	Service Credit